Week 13

What are the various rights of the copyright holder, under the Copyright Act of 1957?

Introduction and Statutory Framework

The **Copyright Act, 1957** is the primary legislation governing copyright law in India. Enacted shortly after independence, it came into force on **January 21, 1958**, and has been amended several times (most notably in 1984, 1994, 1999, and 2012) to adapt to technological advancements, digital media, and international treaties.

Copyright is a form of intellectual property right (IPR) that protects the original expression of ideas rather than the ideas themselves. Under Section 14 of the Act, a copyright holder is granted a bundle of exclusive legal rights over their creative works. These rights enable the creator or copyright owner to control how their work is used, reproduced, distributed, and monetized, while also providing legal remedies against infringement.

Scope of Works Protected Under the Act

Before examining the rights of a copyright holder, it is essential to understand the subject matter eligible for copyright protection under **Section 13**:

- **Original Literary Works** (books, computer programs, compilations, tables, etc.)
- **Dramatic Works** (scripts, screenplays, choreography)
- **Musical Works** (musical compositions, excluding lyrics or action accompanying music)
- **Artistic Works** (paintings, sculptures, drawings, photographs, architectural works)
- **Cinematograph Films** (including sound tracks recorded with them)
- **Sound Recordings** (recording of sounds regardless of the medium)

Exclusive Rights of a Copyright Holder (Section 14)

Section 14 of the Copyright Act, 1957 defines copyright as the **exclusive right** to do or authorize the doing of certain acts in respect of a work or any substantial part thereof. These rights vary depending on the category of the work.

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|                BUNDLE OF RIGHTS UNDER SECTION 14            |
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1. Right of Reproduction
2. Right of Distribution & Issuing Copies
3. Right of Public Performance
4. Right of Communication to the Public
5. Right to Translate and Adapt

6. Right of Commercial Rental

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## 1. Rights in Respect of Literary, Dramatic, or Musical Works (Sec. 14(a))

For literary (excluding computer programs), dramatic, or musical works, the owner has the exclusive right:

- **To reproduce the work** in any material form, including storing it in any medium by electronic means.
- **To publish the work** (issuing copies to the public).
- **To perform the work in public** or communicate it to the public.
- **To produce, reproduce, perform, or publish any translation** of the work.
- **To make any adaptation** of the work (such as turning a novel into a movie script or play), and to perform or publish the adaptation.
- **To make any cinematograph film or sound recording** in respect of the work.

## 2. Rights in Respect of Computer Programs (Sec. 14(a)(i) proviso)

For computer programs, the copyright owner holds the exclusive right:

- To do any of the acts specified above (reproduction, translation, adaptation).
- To **sell or give on commercial rental**, or offer for sale or commercial rental, any copy of the computer program (though a lawful possessor can make back-up copies for operational safety).

## 3. Rights in Respect of Artistic Works (Sec. 14(c))

For artistic works (e.g., paintings, photographs, sculptures), the owner has the exclusive right:

- **To reproduce the work** in any material form, including storing it in 3D (such as making a physical sculpture from a 2D drawing or vice versa).
- **To communicate the work** to the public.
- **To issue copies** of the work to the public.
- **To include the work** in a cinematograph film.
- **To make any adaptation** of the work.

## 4. Rights in Respect of Cinematograph Films (Sec. 14(d))

For cinematograph films, the owner has the exclusive right:

- **To make a copy of the film**, including a photograph of any image forming part thereof, or storing it via electronic means.
- **To sell or give on commercial rental**, or offer for sale or rental, any copy of the film.
- **To communicate the film** to the public (such as broadcasting it on TV, streaming online, or screening in theaters).
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5. Rights in Respect of Sound Recordings (Sec. 14(e))

For sound recordings, the owner has the exclusive right:

- **To make any other sound recording** embodying it (including storing it in electronic media).
- **To sell or give on commercial rental**, or offer for sale or rental, any copy of the sound recording.
- **To communicate the sound recording** to the public (such as broadcasting or playing it publicly).

Moral Rights of an Author (Section 19A & Section 57)

Even if a copyright owner assigns their economic rights to a third party (such as a publisher or production house), the author retains **Moral Rights** under Section 57. These are personal rights independent of copyright:

1. **Right of Paternity (Claiming Authorship):** The right to claim authorship of the work and to restrain or claim damages in respect of any distortion, mutilation, modification, or other act done in relation to the work if such action would prejudice their honor or reputation.
2. **Right of Integrity:** The right to protect the work from unauthorized alterations or distortions that harm the creator's professional standing or creative vision.

Transfer and Exploitation of Rights (Assignment and Licensing)

Copyright is a form of private property that can be commercialized. The holder possesses statutory rights to transfer or share their privileges:

- **Assignment of Copyright (Section 18 & 19):** The owner may assign the copyright (either wholly or partially, generally or subject to limitations) to any person for a specific duration or territorial scope. The assignment must be in writing and signed by the assignor.
- **Licensing of Copyright (Section 30 & 31):** The owner can grant a **license** (exclusive or non-exclusive) to another person to exercise certain rights without transferring ownership. The Act also provides for statutory and compulsory licenses managed by the Copyright Board in cases where the owner unreasonably withholds publication or refuses to grant licenses to the public.

Enforcement and Remedies Against Infringement

To protect these rights, the Copyright Act provides robust civil, criminal, and administrative remedies against copyright infringement (unauthorized use, copying, or commercial exploitation):

- **Civil Remedies (Section 55):** Injunctions to stop ongoing infringement, damages, accounts of profits, and delivery up of infringing copies.
- **Criminal Remedies (Section 63 onwards):** Imprisonment terms (ranging from 6 months up to 3 years) and heavy fines (ranging from INR 50,000 to INR 200,000) for willful infringement or commercial piracy.
- **Police Powers (Section 64):** Empowering police officers not below the rank of sub-inspector to seize infringing copies without a warrant in certain circumstances.

Summary and Conclusion

The Copyright Act, 1957 grants copyright holders a comprehensive "bundle of rights"—spanning economic privileges like reproduction, adaptation, public performance, distribution, and commercial rental, alongside moral rights of integrity and paternity. These rights strike a delicate balance: they

reward creators and investors with legal security and financial incentives while ensuring that creative works ultimately contribute to cultural growth and public dissemination.